

## 26SMCV03280 26SMCV03280

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Case Number: 26SMCV03280 Hearing Date: August 4, 2026 Dept: P

Tentative

Ruling

Kenneth

Dean Winkler, et al. v. Beverly Hills Properties, Inc., Case No. 26SMCV03280

Defendants'

Motion to Compel Arbitration

Hearing

Date: August 4, 2026

Background

Plaintiffs

Kenneth Dean Winkler and Nancy Benson Nason sue Defendant Beverly Hills Properties for negligence, breach of the implied warranty of habitability, breach of the covenant of quiet enjoyment, constructive eviction, elder abuse, intentional infliction of emotional distress (IIED), negligent infliction of emotional distress (NIED), and violations of the Los Angeles Rent Stabilization Ordinance. Winkler and Nason allege that they are elderly tenants living at 3121 S. Barrington Avenue, Unit 6, Los Angeles, California. (Complaint, ¶¶1-2.) Plaintiffs allege that they were forced to vacate the unit on February 3, 2026, due to mold and other habitability issues. (Id. at ¶ 6.) They contend that Beverly Hills Properties has failed to pay their reimbursement claims and have provided no definitive date upon which the unit will be suitable for re-occupancy. (Id. at ¶¶ 11-13.)

On June

15, 2026, Winkler and Nason filed the complaint.

On July 2,

2026, Winkler and Nason filed a motion for trial preference. On July 22, 2026, Beverly Hills Properties filed opposition to the motion for trial preference.

On July 9,

2026, Beverly Hills Properties filed a motion to compel arbitration. On July 23, 2026, Winkler and Nason filed opposition to the motion to compel arbitration.

Motion

to Compel Arbitration

Request

for judicial notice

Beverly

Hills Properties requests judicial notice of Judge Makenzie's ruling on Beverly Hills Properties' Motion to Compel Arbitration in LASC Case No. 25STCV38275.

Notice is

GRANTED.

Arguments

Beverly

Hills Properties argues that Winkler and Nason's lease contains an arbitration provision subjecting this suit to arbitration. (Motion to Compel Arbitration, pp. 6-7.) Beverly Hills Properties argues that the majority of Winkler and Nason's claims are negligence and habitability claims covered by the arbitration agreement. (Id. at pp. 7-8.) Beverly Hills Properties argues that the arbitration agreement should be presumed enforceable because they have proven its existence and application in this case, and that there are no grounds to revoke the agreement because the FAA pre-empts California law, including Civ. Code § 1953. (Id. at p. 14.)

In

opposition, Winkler and Nason argue that the arbitration clause in the lease is

expressly limited by its language to personal injury claims and therefore does not require arbitration of Winkler and Nason's claims arising from property damage, constructive eviction, and relocation. (Opposition, p. 2.) Winkler and Nason argue that Beverly Hills Properties reverses the grammatical structure of the arbitration agreement to apply it to habitability disputes where it is really restricted to personal injury claims. (Id. at p. 7.) Winkler and Nason argue that Civil Code § 1953 provides that a provision of a residential lease that modifies or waives a tenant's rights in litigation is void as contrary to public policy, and that California Courts have routinely applied that principle to arbitration clauses invoking the FAA. (Id. at p. 10.) Winkler and Nason then argue that even if the FAA preempts § 1953, it does not expand the arbitration agreement beyond the scope of the lease and apply it to non-personal injury claims. (Id. at p. 11.) Winkler and Nason argue that the arbitration agreement is unconscionable because it is an adhesion agreement and ask that, if the Court does grant the motion, it not compel the non-personal injury claims or stay the action. (Id. at p. 13.)

In reply,

Beverly Hills Properties argues that Winkler and Nason do not dispute that their first cause of action falls under the arbitration provision in the lease agreement and argues that the arbitration provision is broad enough to encompass all Winkler and Nason's claims because it applies to "any claims," and includes claims arising from alleged breaches of the implied warranty of habitability. (Reply, p. 3.) Beverly Hills Properties then argues that the FAA applies and preempts the Court of Appeal's decision in *Jaramillo v. JH Real Estate Partners, Inc.* (Id. at p. 4-5.) Beverly Hills Properties argues that Winkler and Nason do not meet their burden of demonstrating that the arbitration provision does not cover the claims at issue. (Id. at p. 7.) Beverly Hills Properties argues that the arbitration agreement is not unconscionable. (Id. at p. 9.)

Governing

Law- Motion to Compel Arbitration

"On

petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate a controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists . . ."

(Code Civ. Proc., § 1281.2) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.)

## Discussion

a.

Existence  
of an arbitration agreement

Winkler

and Nason do not dispute the existence of the arbitration agreement or that they signed it. Beverly Hills Properties submits the lease agreement, initialed below the arbitration clause by Winkler and Nason, which contains the following arbitration clause:

## Arbitration

of Personal Injury Disputes.

Any claims for personal injuries, directly or indirectly relating to or arising out of the condition of the leased premises, including without limitation the existence of a hazardous substance in, on, or about the building, the leased premises, or both, whether based on the theory of negligence, strict liability, breach of LANDLORD's warrant of habitability, or any other theory, shall be submitted to and decided by binding arbitration. Such arbitration shall be held in the city and state where the premises are located in accordance with the American Arbitration Association rules for a single arbitrator. The arbitrator's award shall be enforceable in any court of competent jurisdiction. Nothing in this section shall be deemed to limit LANDLORD's rights in the event of TENANT's breach or default under this agreement, including without limitation LANDLORD's rights to bring an action for unlawful detainer under the laws of the state where the premises are located.

(Umanzor

Decl., Exhibit 1, ¶ 36.)

In

deciding whether to compel arbitration, judges identify the controversy and then decide whether it is within the scope of the arbitration

provisions. (Titolo v. Cano (2007) 157 Cal.App.4th 310, 316.)

“Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration.

The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute.” (California Correctional Peace Officers Ass’n v. State, (2006) 142 Cal.App.4th 198, 205.)

The Court

agrees with Winkler and Nason’s reading of the arbitration provision. The lease’s arbitration provision applies to “Any claims for personal injuries,” no matter the legal theory they are brought under, not claims for property damage. Winkler and Nason’s complaint primarily alleges property damage, financial harm and harm to personal property. (See Complaint, ¶¶ 38-40 [out-of-pocket expenses for storage and protective equipment during remediation, contaminated personal property; loss of furniture, antiques, books, etc.].) Winkler and Nason claim emotional distress arising from the property damage, but no other personal injury. (Complaint, ¶¶ 43C, 45.) Here, because Winkler and Nason’s claims seek damages for the time they were unable to occupy the property, this case is not properly characterized as a claim for personal injuries. (See, e.g., Black’s Law Dictionary (12th ed. 2024), 16c, defining personal injury in the negligence context, personal injury as “any harm caused to a person, such as a broken bone, a cut, or a bruise; bodily injury.”)

Even if

the Court were to assume the position that the arbitration provision applied to Winkler and Nason’s claims, Civ. Code § 1953(a)(4) “establishes the general rule that a tenant of residential premises cannot validly agree, in a residential lease agreement, to binding arbitration to resolve disputes regarding his or her rights and obligations as a tenant.” (Jaramillo v. JH Real Estate Partners, Inc. (2003) 111 Cal.App.4th 394, 404.) As Beverly Hills Properties points out, the arbitration provision in Winkler and Nason’s lease was almost identical to the arbitration provision at issue in Jaramillo, which the Court of Appeal found unenforceable under the CAA and unconscionable. The higher courts have not conclusively resolved whether or not Jaramillo is pre-empted by the FAA, as Beverly Hills Properties contends, and this Court declines to make that determination here because it finds that this action falls outside of the scope of the arbitration provision at issue.

Beverly

Hills Properties cites Judge Mackenzie's ruling on a similar motion to compel arbitration in *Fallah v. Sterling*, LASC Case No. 25STCV38275, finding that some of the plaintiff's claims in that case fell under the arbitration provision, that the FAA preempts *Jaramillo*, and compelling the case to arbitration. That case is distinguishable from this one. In *Fallah*, the plaintiffs claimed physical injury as a result of the apartment's condition. (RJN, Exhibit 1, p. 1.) Here, Winkler and Nason primarily claim property damages and do not assert specific claims for physical injuries.

That being said, Plaintiffs do not entirely disclaim their claims for emotional distress damages. To the extent that Winkler and Nason's claims could be construed as personal injury claims, the Court finds the arbitration clause at issue to be unconscionable.

First, the arbitration agreement is procedurally unconscionable because it is an adhesion contract. The arbitration agreement is also substantively unconscionable because it provides for the arbitration of personal injury claims, but specifically reserved to the landlord the right to bring any kind of action against the tenant in court. (Umanzor Decl., Exhibit 1, ¶ 36.) In *Jaramillo*, *supra*, 111 Cal.App.4th, after concluding that the arbitration agreement was unenforceable under section 1953, subdivision (a), the Court of Appeal alternatively affirmed the trial court's ruling that it was unconscionable. There, the arbitration agreement provided for the arbitration of personal injury claims, but specifically reserved to the landlord the right to bring an Unlawful Detainer action in court. (Id. at p. 398.) Noting that "personal injury claims arising from the condition of the leased premises are largely, if not exclusively, tenant claims," the Court held that the agreement was unconscionable. (Id. at p. 405.)

As in *Jaramillo*, the arbitration agreement extends only to "Any claims for personal injuries, directly or indirectly relating to or arising out of the condition of the leased premises..." and specifically provides that it does not "limit ... LANDLORD's rights in the event of TENANT's breach or default under this agreement, including without limitation LANDLORD's rights to bring an action for unlawful detainer under the laws of the state where the premises are located." (Umanzor Decl., Exhibit 1 ¶ 36.) Defendants have required Plaintiffs to pursue their most likely

claims in arbitration, while reserving all of Defendant's claims for court. "[A]n arbitration agreement imposed in an adhesive context lacks basic fairness and mutuality if it requires one contracting party, but not the other, to arbitrate all claims arising out of the same transaction or occurrence or series of transactions or occurrences." (Jaramillo, supra, 111 Cal.App.4th at 535, quoting Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 120.)

Conclusion

Beverly

Hills Properties' Motion to Compel Arbitration is DENIED.

Motion

for Trial Preference

Arguments

Winkler

and Nason move for trial preference on the grounds that they are 85 and 91 years old, respectively, possess substantial interest in this litigation, and that trial preference is necessary to prevent prejudice due to Winkler and Nason's significant health concerns. (Motion for Trial Preference, p. 8.)

In

opposition, Beverly Hills Properties asks that the Motion for Trial Preference be stayed pending determination of its Motion to compel arbitration. (Opposition, p. 4.) Beverly Hills Properties also argues that Winkler and Nason have not presented sufficient evidence to meet the requirements to show that their medical issues mean that trial preference is necessary to prevent prejudice. (Id. at p. 6.)

In reply, Winkler

and Nason argue that the Court should not delay the hearing on the motion for trial preference, that they have produced sufficient evidence, and that

Governing

Law- Motion for Trial Preference

Code of

Civil Procedure section 36, subdivision (a) provides as follows:

“(a) A

party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1) The

party has a substantial interest in the action as a whole.

(2) The

health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.”

If the

Court makes these findings, trial preference is mandatory—the Court lacks discretion to deny the relief. (Koch-Ash v. Superior Court (1986) 180 Cal.App.3d 689, 692.) The purpose of section 36, subdivision (a) is “to safeguard litigants beyond a specified age against the legislatively acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover their just measure of damages or appropriate redress.” (Kline v. Superior Court (1991) 227 Cal.App.3d 512, 515.) Upon the granting of a motion for trial preference, “the court shall set the matter for trial not more than 120 days from that date.” (Code Civ. Proc., § 36, subd. (f).)

Discussion

Winkler

and Nason’s ages are undisputed. Both are over 70.

“The issue

under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called. Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that the party’s “health . . . is such that a preference is necessary to prevent prejudicing [his/her] interest in the litigation.” (Italics added.)” (Fox v. Superior Court (2018) 21 Cal.App.5th 529, 534.) The absence of specifics regarding plaintiff’s prognosis



is insufficient reason to deny a request for calendar preference.¿ “Subdivision (a) requires the granting of calendar preference to ‘prevent’ prejudice to a stricken litigant’s interests.¿ (Italics added.)¿ The idea that [plaintiff] should be made to wait to file a preference motion until she is clearly in her final days—when attendance at a trial is hardly what she should be doing—makes no sense at all.”¿ (Id. at p. 536.)

Winkler

and Nason submit evidence that Nason has experienced significant health issues requiring hospitalization, overnight admissions, and diagnostic testing. (Nason Decl., ¶ 8.) Both Winkler and Nason indicate that they intend to participate in the litigation personally. Their evidentiary showing is sufficient to meet their burden of proof on a motion for trial preference.

Conclusion

The Motion

for Trial Preference is granted.

Conclusion

Beverly

Hills Properties’ Motion to Compel Arbitration is DENIED.

Winkler

and Nason’s Motion for Trial Preference is GRANTED. Trial is set for 120 days from the date of this hearing, November 30, 2026.